

2026 No. 16

INFRASTRUCTURE PLANNING

**The A46 Newark Bypass Development Consent (Correction) Order
2026**

Made - - - - *9th January 2026*

Coming into force - - *12th January 2026*

The A46 Newark Bypass Development Consent Order 2025 (“the 2025 Order”)(**a**), which granted development consent within the meaning of the Planning Act 2008 (“the Act”)(**b**), contained correctable errors as defined in paragraph 1(3) of Schedule 4 to the Act.

In accordance with paragraph 1(5)(a) of Schedule 4 to the Act, before the end of the relevant period, as defined in paragraph 1(6)(a) of Schedule 4 to the Act, the Secretary of State received a written request from the applicant(**c**) for the correction of errors and omissions in the 2025 Order.

In accordance with paragraph 1(7) of Schedule 4 to the Act, the Secretary of State has informed the relevant local planning authorities that the request has been received.

The Secretary of State, in exercise of the powers conferred by section 119 of, and paragraph 1(4) and (8) of Schedule 4 to, the Act, makes the following Order.

Citation and commencement

1. This Order may be cited as the A46 Newark Bypass Development Consent (Correction) Order 2026 and comes into force on 12th January 2026.

Corrections to the A46 Newark Bypass Development Consent Order 2025

2. The A46 Newark Bypass Development Consent Order 2025 is corrected as set out in the table in the Schedule of this Order, where—

- (a) column 1 sets out where the correction is to be made;
- (b) column 2 sets out how the correction is to be made; and
- (c) column 3 sets out the text to be substituted, inserted or omitted.

(a) S.I. 2025/1090.

(b) 2008 c. 29. Paragraph 1 of Schedule 4 was amended by paragraph 70 of Schedule 13, and Part 20 of Schedule 25, to the Localism Act 2011 (c. 20). There are other amendments to paragraph 1 which are not relevant to this Order.

(c) The term “applicant” is defined in paragraph 4 of Schedule 4 to the Planning Act 2008.

Signed by authority of the Secretary of State for Transport

9th January 2026

Natasha Kopala
Head of the Transport and Works Act Orders Unit
Department for Transport

SCHEDULE

Article 2

Correctable errors

(1) Where the correction is to be made	(2) How the correction is to be made	(3) Text to be substituted, inserted or omitted
Article 2(1) (interpretation), definition of “cycle track”	After “of the 1980 Act”, insert	“, save that all cycle tracks in this Order provide for a right of way on foot”
Article 2	After paragraph (9), insert	“(10) References to any statutory body includes a body’s successor or replacement body that may from time to time be primarily responsible for the functions duties and responsibilities currently exercised by that statutory body over the authorised development.”
Article 7(3) (application of the 1990 Act)	For paragraph (3), substitute	“(3) In this article, “the temporary works” means— (a) those works described for Work Nos. 10 to 11, 21, 25, 28, 47, 59, 65, 68, 85, 92, 106 and 126 to 128 in Schedule 1; or (b) temporary works carried out as part of “other associated development” in connection with the Work Nos. in Schedule 1.”
Article 45(2)(a) (felling or lopping of trees and removal of hedgerows)	After “tree or shrub”, insert	“and”
Article 45(2)(b)	For “; and”, substitute	“.”

(1) Where the correction is to be made	(2) How the correction is to be made	(3) Text to be substituted, inserted or omitted
Article 45(2)	Omit	Sub-paragraph (c)
Schedule 1 (authorised development), under the heading “Works”, Work No. 42	For “Micklebarrow Hill”, substitute	“Kelham Road”
Schedule 1, under the heading “Works”, Work No. 109	After “A1133”, omit	“Newark Road”
Schedule 1, under the heading “Works”, Work No. 122	For “Micklebarrow Hill”, substitute	“Main Road”
Schedule 1, under the heading “Works”, Work No. 124	For “Micklebarrow Hill”, substitute	“Main Road”
Schedule 1, under the heading “Utilities Works”, Work No. U26	After “A1133”, omit	“Newark Road”
Schedule 1, under the heading “Utilities Works”, Work No. U29	For “Micklebarrow Hill north-east”, substitute	“Main Road”
Schedule 1, under the heading “Utilities Works”, Work No. U31	For “Micklebarrow Hill north-east”, substitute	“Main Road”
Schedule 1, under the heading “Utilities Works”, Work No. U32	For “Micklebarrow Hill north-east”, substitute	“Main Road”
Schedule 1, under the heading “Utilities Works”, Work No. U33	For “Micklebarrow Hill north-east”, substitute	“Main Road”
Schedule 2, Part 1 (requirements), paragraph 5(8) (construction hours)	For “sub-paragraph 16(4)”, substitute	“sub-paragraph (7)”
Schedule 2, Part 1 (requirements), paragraph 9(3) (Archaeology and built heritage)	For “Archaeological Mitigation Strategy”, substitute	“archaeological mitigation strategy”

EXPLANATORY NOTE

(This note is not part of the Order)

The Order corrects errors and omissions in A46 Newark Bypass Development Consent Order 2025 a development consent order under the Planning Act 2008, following a request under paragraph 1(5)(a) of Schedule 4 to that Act.